

Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

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Writ Petition No.2835 of 2011

Inam-ul-Haq.....Petitioner

VS

Judge Family Court, Lahore etc.....Respondents

JUDGMENT

Date of hearing: 26.11.2014

Petitioner by: Mr. Sana Ullah Ch. Advocate.

Respondents No.2 to 5 by: Mr. Haseeb Ali Quddusi,
Advocate.

MIRZA VIQAS RAUF, J. Through the instant petition, the petitioner challenges the validity of order dated 08.12.2010 passed by learned Judge Family Court, Lahore whereby in a suit filed by respondent No.5 for recovery of dower and maintenance against the petitioner, order for interim maintenance allowance at the rate of Rs.1500/- for each minor has been passed which was directed to be paid from the date of institution of suit.

2. Learned counsel for the petitioner contended that the order for interim maintenance cannot be passed in such a manner that it could take effect retrospectively. Further contended that as per Section 17-A of the Family Courts Act, 1964, the learned

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Judge Family Court is not competent to award interim maintenance for the period prior to the date of order. In this regard, he relied on case reported as "Zafar Hussain vs. Begum Farzana Nazli and others." (PLD 2004 Lahore 349).

3. On the other hand, learned counsel for the contesting respondent contended that the learned Judge Family Court was fully equipped with the powers to pass an order directing the petitioner to pay interim maintenance from the date of filing of the suit and in support of his contention, he placed reliance on case reported as "Muhammad Irfan vs. Judge, Family Court and 2 others." (2008 CLC 585). He maintained that the order impugned in the instant petition is an interlocutory order against which no writ is maintainable.

4. I have heard the learned counsel for the parties and perused the record.

5. Before dilating upon the matter in issue, it would be advantageous to read Section 17-A of the Family Courts Act, 1964 which is reproduced as under:-

"17-A. Interim order for maintenance.---At any stage of proceedings in a suit for maintenance, the Family Court may pass an interim order for maintenance, whereunder the payment shall be made by the fourteenth of each month, failing which the Court may strike off the defence of the defendant and decree the suit."

6. The above provision of law clearly postulates that the learned Judge Family Court is vested with the powers to pass an order for interim maintenance at any stage of the proceedings in a suit for maintenance. Section 17-A of West Pakistan Family Courts Act, 1964 was brought on the statute by way of Ordinance No.LV

of 2002 for the first time by amending the Act No.XXXV of 1964 whereby the Family Courts have been equipped with the powers to pass an order for interim maintenance during pendency of the suit. Similarly, legislature through the same ordinance also introduced Section 12-A in the Act No.XXXV of 1964, which prescribes the period of six months for the completion of proceedings before the Family Court from the date of its institution. The said provision of law also provides that where a case is not disposed of within six months, either party shall have a right to make an application to the High Court for necessary direction as the High Court may deem fit. Both the provisions of law are interlinked and interconnected in their terms and mandate. On the one hand, the Family Court has been equipped with the mandate to pass an interim order for payment of maintenance and at the same time, it has been made incumbent for the court to dispose of the case pending before it within a period of six months from the date of its institution. The joint reading of the above referred provisions of law postulates that an order passed under section 17-A of the Act *ibid* for payment of interim maintenance would, at the most, be remained operative for a period of six months as allocated in Section 12-A of the Act *ibid*. It is further held that use of words "*at any stage of proceedings*" does not mean that the Family Court in its discretion can pass the said order after institution of the suit till the decision of the case at any time but keeping in view the intent of legislature, these words clearly signifies that order for interim maintenance should be passed by the learned Judge Family court at the earliest upon instituting the suit for protecting the rights of the minors during

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pendency of the suit. So, the Family Courts while exercising these powers are supposed to pass an order for interim maintenance as early as possible after institution of the suit and upon receipt of the written statement. The contention of learned counsel that interim order for maintenance could only be passed for future period and it could not be given a retrospective effect under the law, seems to be mis-conceived. The learned Judge Family Court has fixed the interim maintenance from the date of institution of suit which in nowhere can be termed as award of past maintenance. The judgment referred by the learned counsel for the petitioner reported as "Zafar Hussain vs. Begum Farzana Nazli and others." (PLD 2004 Lahore 239) in my humble view, did not carry the proper interpretation of Section 17-A of the Act *ibid*, especially with regard to the issue in hand. I am inclined to follow the latter view in which well-reasoned principle is laid down in this regard. In the case of "Muhammad Irfan vs. Judge, Family Court and 2 others." (2008 CLC 585) while dealing with the similar proposition, this Court held in Para-3 as under:-

"The learned Judge Family Court granted the interim maintenance allowance only from the date of institution of the suit, which by any stretch of imagination could not be termed as the past maintenance. The proceedings of a suit take effect from its institution and as such any order, including the one for maintenance allowance, given effect from the date of institution, is an order for interim period only. The retrospectively could be relatable to the period preceding the date of institution and not the period starting with the commencement of the suit." *m-*

7. Thus, in my humble view, while agreeing with the principle laid down in the above referred citation, order fixing the interim maintenance from the date of institution of the suit is not violative of law and the petition to this extent is mis-conceived.

8. Now coming to the question of effectiveness of order passed under section 17-A of the Act *ibid*. This Court is of the view that maximum life of an order passed for interim maintenance is six months as per mandate of Section 12-A of the Act *ibid*. This Court has already held a thread bearing discussion on the implication of Section 17-A and 12-A of the West Pakistan Family Courts Act, 1964 in case of "Muhammad Shahbaz Khalid vs. Judge Family Court, Lahore and others." (PLD 2013 Lahore 64). The relevant and necessary portion from the above referred reported judgment is reproduced as under:-

"By joint reading of Section 17-A and 12-A of the West Pakistan Family Courts Act 1964 (hereinafter to be referred as the Act), what comes out is that when the Family Court was made competent to pass an interim order for payment of maintenance, it was at the same time, made incumbent for the same Court to dispose of the case pending before it within a period of six months from the date of institution, meaning thereby, that the order passed under section 17-A of the Act for payment of interim maintenance would, at the most, be effective for a period of six months which time has been allocated by virtue of Section 12-A of the Act for final disposal of a lis pending before a Judge Family Court and, when the maximum age of an interim order passed under section 17-A of the Act expires, the proceedings, if continued before the Family Court, the same would be considered violative to the provisions of Section 12-A of the Act and this Court by virtue of proviso attached to Section 12-A

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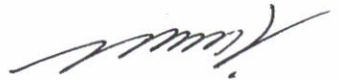
of the Act has been made competent to take notice of pendency of a family suit beyond the period of six months and to pass any direction as deem fit.”

9. Bare reading of the above referred portion of the judgment clearly manifest that the Family Court, while passing the order for interim maintenance under Section 17-A of the Act *ibid* shall keep in mind the bounden duty imposed under Section 12-A of the Act *ibid* for final disposal of the lis within the prescribed period of six months in order to avoid burdening any of the parties before it.

10. Record reveals that the suit was filed before the Family Court on 04.09.2009 and the learned Judge Family Court passed an order for interim maintenance on 08.12.2010. The suit is still awaiting its fate which is in violation of the mandatory provision of Section 12-A of the Act *ibid*. In this view of the matter, learned Judge Family Court is directed to conduct the proceedings in the suit in hand on day-to-day basis and conclude the same by or before 24th of December, 2014, positively without fail. The learned Judge Family Court is also directed to submit a compliance report through the Deputy Registrar (Judicial) of this Court for perusal. However, in the meanwhile, the petitioner shall deposit the interim maintenance as was fixed by the learned Judge Family Court till decision of the suit. Before parting with this judgment, I deem it appropriate to observe that the Family Courts in future shall endeavour and strive to take all necessary steps for achieving the objects of the provisions of Section 17-A as well as Section 12-A of the Act *ibid* in the proceedings before them and no unnecessary delay shall be caused in conclusion of

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the proceedings before them. With these observations, instant petition is disposed of.


(MIRZA VIQAS RAUF)
JUDGE

Approved for reporting


JUDGE


Rana Yamin*